Holmes stops Bey in 10th round

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THE TRIBUNE

SERVING THE GREATER BAY AREA FROM OAKLAND SINCE 1874

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Polluted Kesterson closed

Spying by TV

Surveillance outgrows privacy laws

New cameras replace hidden microphones

By David Burnham
The New York Times

WASHINGTON — The unblinking eyes of the tiny television cameras peered into every room of the Chicago apartment used by the terrorists.

The FBI had secretly broken in and installed the hidden lenses because the agents believed the targets of their surveillance, wise to ways of hidden microphones, might try playing the radio loudly when they spoke or working in silence as they assembled their bombs.

The agents' strategy worked. Shortly after the cameras were installed two suspects, alleged members of a secret Puerto Rican terrorist organization, were televised as they built their bombs.

"Safe house" discovered

The two, tailed as they left their informal bomb factory, led federal agents to a second "safe house," where additional secret cameras, as well as microphones, were installed.

Five years ago, on the basis of this and other evidence, 10 members of the FALN, the Armed Forces of National Liberation, were arrested, and later convicted and sentenced to long terms in federal prison on charges of bombing and conspiring to bomb 28 buildings in the Chicago area.

Although the physical tremors from those explosions have subsided, the legal echoes from the television surveillance continue to reverberate through the courts and Congress, where a bill dealing with some of the more troublesome issues will be reintroduced shortly.

Warning by court

They were raised late last year before a federal court considering an appeal from the Chicago convictions. Secret television surveillance, the 7th U.S. Circuit Court of Appeals warned, was exceedingly intrusive and unless controlled could "eliminate privacy as understood in modern Western nations."

The court coupled its warning with a recommendation that Congress pass legislation setting down specific criteria for police use of television surveillance.

Only recently have television cameras become sufficiently inexpensive, compact and light sensitive to permit surveillance in many different situations. As

See SURVEILLANCE, Page A-2

They're off and slithering

By Roy H. Williams/The Tribune

Like rush-hour traffic, Oakland's annual St. Patrick's Day Snail Race got under way yesterday at the Lincoln Square Recreation Center. At left, the racers make their erratic way across the floor, while above Janet Lao proudly displays the trophy won by her speedster. Today's St. Pat's activities, see Page A-8.

42,000 acres of farmland face an irrigation cutoff

By Mark Paul
The Tribune

LOS BANOS — Dropping "a bombshell" on California farmers, the Interior Department yesterday closed selenium-tainted Kesterson Wildlife Refuge and ordered an immediate cutoff of federal irrigation water to the 42,000 acres of farmland it drains.

In a surprise announcement made here before a congressional hearing on Kesterson, Carol Hallett, western representative for Interior Secretary Donald Hodel, said the department would immediately plug the San Luis Drain, which carries farm wastewater from federally irrigated farmlands on the west side of the Central Valley to its terminus in the refuge.

The drainage water flowing into the marshes carries high concentrations of the element selenium, leached from the hills above the valley. In 1983, biologists implicated selenium in the death and deformation of thousands of ducks and other migratory birds in the refuge.

Explanations vary

Hallett said that immediate action was necessary to prevent federal officials from being in violation of the criminal provisions of the Migratory Bird Treaty Act, which protects the wildlife passing through the refuge.

Albert Meyerhoff, a lawyer with the Natural Resources Defense Council, which has urged the shutdown of Kesterson, criticized the Interior Department's sudden announcement as an effort to create a climate of "fear and hysteria" in which legislators in Washington and Sacramento could be pushed into weakening environmental laws.

"You could see the hot potato being thrown across the room (from the administration to Congress)," he said.

The sudden decision stunned an audience of farmers and agribusiness representatives packed into an exhibit hall at the Merced County Fairgrounds.

Many of the 53 farming operations in the district draining into Kesterson already have crops of tomatoes and cantaloupes in the ground, and have invested millions of dollars — much of it borrowed from banks — in fertilizers and soil preparation for the current growing season, farmers said.

Visions of devastation

"You're taking generations of people farming the land and you're shutting them down," said Jim Gramis, a farmer in the Westlands District. "You're saying, 'Go do something else, fella' . . . "

"We're not bankrupt," he said, his voice breaking and tears welling in his eyes. "We're devastated."

"What are we going to tell our employees?" asked Darrell

See KESTERSON, Back Page

Donovan quits post; ordered to stand trial

By Lou Cannon
and George Lardner Jr.
The Washington Post

WASHINGTON — Labor Secretary Raymond J. Donovan, plagued by charges that he was tied to organized crime before taking office, resigned yesterday hours after a New York State Supreme Court judge ruled that he must stand trial on 137 counts of grand larceny and fraud.

President Reagan, who was Donovan's staunchest defender during more than four years of controversy, met with him for 10 minutes and released a one-paragraph letter accepting his

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Raymond J. Donovan
Decision 'not surprising'

SPCA dispute draws fire from experts

By David Alcoff
The Tribune

Bay Area humane society officials yesterday assailed the Oakland SPCA board of directors for forcing the resignation of Martha Armstrong, the executive director who quit this week rather than impose board-mandated layoffs.

The officials all ranked Armstrong as one of the top people in her field nationally.

They also praised Kurt Lapham, Armstrong's operations manager, who said yesterday he had been fired. The board said he quit voluntarily.

At the same time, other sources said the U.S. Humane Society last month conducted an evaluation of the Oakland SPCA animal shelter on Baldwin Street that found nothing remiss with its treatment of animals.

The evaluation's results are expected to reach the local board of directors next week, the sources said.

The condition of the facility, which houses as many as 11,000 animals a year, was one of the key issues cited by board members when they called Armstrong on the carpet Tues-

See SPCA, Back Page

Ohio governor orders savings banks closed

By The Tribune news services

Ohio Governor Richard F. Celeste's bold but controversial bid to stem a banking panic drew sharp protests from some customers and savings and loan officers, who termed it too harsh.

The governor temporarily closed 70 privately insured savings and loan associations in his state yesterday, after a withdrawal run hit several savings banks in the Cincinnati area.

Saying that "we need to take forceful action," Celeste told a news conference in Cincinnati that the savings institutions will remain closed until Monday morning. Most would normally have been open yesterday and this morning.

It is believed to be the first time since the Depression that a government official has taken such drastic action to dampen a depositor panic.

Celeste's action was the latest in a sequence of rapidly moving events that began last

Gov. Richard Celeste
Closes S&Ls

Saturday after Cincinnati-based Home State Savings Bank failed because of its heavy involvement with a now-defunct government securities dealer in Florida. (Home State is not affiliated with Home

See BANKS, Back Page

Husband and wife accused of $300,000 Kaiser theft

By Lloyd Boles
The Tribune

HAYWARD — A felony complaint was filed here yesterday charging Robert Kelly, former Kaiser Foundation Health Plan executive, with stealing more than $300,000 in labor and materials from Kaiser to refurbish homes he and his wife own in Pebble Beach and Emeryville.

Martha Worthylake Kelly, Robert's wife and a former Kaiser foreman, was charged with one count of grand theft in the complaint signed by John Lovelady, an Alameda County

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DIGEST

A new clot-dissolving drug reduces the severity of heart attacks in two-thirds of the patients who use it. A-2.

Surgery performed on elderly Americans often is unnecessary. A-3.

Britain raises questions about whether President Reagan's "Star Wars" project can be managed without "dangerous uncertainty." A-6.

Belgium decides to become the fourth Western European nation to deploy medium-range missiles. A-6.

Oakland police are getting national attention for their multifaceted approach to patrolling the central downtown district. A-8.

A coalition of hospital groups plans to sue to force the Reagan administration to come through with higher Medicare payments. A-8.

The Eastbay's first test-tube baby birth is due Monday at Walnut Creek's John Muir Memorial Hospital. A-8.

Two men are found guilty of the drive-by slayings of two others in Oakland in a drug-related incident. A-9.

Gardening tips experts give on how to grow the best. C-1.

Brownie McGhee returns tonight for concerts at Oakland's Koncepts Cultural Gallery in Jenny Lind Hall, where he and former partner Sonny Terry made their first recordings. B-6

Kiki Vandeweghe scores 30 points to lead the Portland Trail Blazers to a 126-101 rout over the Warriors. D-1.

Cal State-Hayward faces South Dakota State in NCAA Division II basketball quarterfinals. D-1.

Navy surprises LSU and Michigan survives a scare in NCAA Southeast play. D-1.

What many of today's lost youth need most is love and respect. Opinion. A-9.

Part of a popular Utah ski resort is flattened by an explosion that kills one, injures 5 and traps two. A-10.

WEATHER

Clearing inland today with low clouds and fog persisting near the ocean. Highs in the mid-50s near the ocean to the mid-60s inland. A-10.